

5:11 [referring to numerous email exchanges in March of 2014 between plaintiff and neighbor].) This constituted notice to plaintiff sufficient to trigger time limitations for plaintiff's time to petition the County.

While the reasonableness of a delay can be a question of fact (see *Fox v. Ethicon Endo-Surgery, Inc.* (2005) 35 Cal.4th 797), it can also be determined as a matter of law in cases where the undisputed facts show the requisite notice. (*65 Butterfield v. Chi. Title Ins. Co.* (1999) 70 Cal.App.4th 1047, 1054-1055 ["it is the discovery of facts, not their legal significance, that starts the statute"].)

Further, plaintiff's arguments related to the significance of Judge Weil's August 2025 ruling are misplaced. The ruling, submitted as Exhibit B to the Request for Judicial Notice in Support of Plaintiff's Opposition to Demurrer, filed September 22, 2025, was in response to a late claim petition filed by plaintiff. Plaintiff had filed a claim against the County, and the County had rejected the claim as untimely. Plaintiff petitioned the Court for leave to submit a late claim, but Judge Weil ruled that the petition was moot. The reasoning was because the claims brought pursuant to the Revenue and Taxation Code were exempt from the claim filing requirements in the Government Claims Act. As for the other causes of action, Judge Weil's ruling does not address the sufficiency, just their timeliness, if they existed. As noted above, the Revenue and Taxation Code remedies are the exclusive avenue for relief in the context of tax sales like those in this case. Accordingly, any mention of the "discovery date" in that ruling does not control here.

The demurrer is sustained on the ground of untimeliness to each cause of action.

C. Voidness

The County argues plaintiff cannot establish that the tax deeds are void (as he would be required to do in order to obtain a refund under Rev. & Tax. Code, § 3729). Plaintiff's allegations still do not amount to fraud, which the previous order correctly noted is one basis on which tax sale deeds can be voided if timely challenged.

The demurrer is further sustained on this ground.

D. Leave to Amend

The demurrer is sustained in its entirety without leave to amend. Though plaintiff asserts he has added allegations that cure the issues previously identified by the Court, the facts are still insufficient. Plaintiff's opposition, while noting leave to amend should be liberally granted, does not provide any additional facts to change this result. (See, e.g., *Medina v. Safe-Guard Products, Internat., Inc.* (2008) 164 Cal.App.4th 105, 112 ["the burden is on the plaintiff to show in what manner he or she can amend the complaint, and how that amendment will change the legal effect of the pleading"].) Plaintiff purchased the parcels in 2012 and 2016. At the latest, Plaintiff knew about the issue with the easement in 2022, when he filed a case in this court in 2022 seeking declaratory relief over the existence of the easement. He cannot turn back the clock on the filing of the instant action on January 29, 2025. It does not seem likely that he can allege additional facts to defeat the one year statute mandated by Revenue and Taxation Code § 3725. If plaintiff intends to contest this ruling, he shall come prepared to discuss any proposed additional facts that would cure the defects noted herein.

10. 9:00 AM CASE NUMBER: C25-00271
CASE NAME: PRAVEEN GUPTA VS. CONTRA COSTA COUNTY
*HEARING ON MOTION IN RE: STRIKE PORTIONS OF PLTFS 1ST AMENDED COMPLAINT
FILED BY: CONTRA COSTA COUNTY
TENTATIVE RULING:

Please see Line 9.

11. 9:00 AM CASE NUMBER: C25-01753
CASE NAME: HAROLD KUSHINS VS. JAY UTAL
HEARING ON DEMURRER TO: COMPLAINT
FILED BY:
TENTATIVE RULING:

Defendant Kenneth Walker ("Defendant") brings the instant demurrer to the complaint of plaintiffs Harold Kushins, Michelle Kushins, A. Timothy Gamber, Helen Kwong, Susan Kwong, Ann Norton, Douglas Norton, and William Walls ("Plaintiffs"). Plaintiffs' complaint asserts three causes of action against Defendant: (1) breach of fiduciary duty; (2) negligence; and (3) fraud. (Complaint, pp. 6-8, ¶¶ 25-43.) Defendant argues that that Plaintiffs' complaint fails to state facts sufficient to constitute a cause of action. (Demurrer, p. 3.)

For the reasons discussed below, the Court's tentative ruling is to **OVERRULE** Defendant's demurrer as to the second cause of action for breach of fiduciary duty and the fourth cause of action for negligence and **SUSTAIN** Defendant's demurrer as to the third cause of action for fraud. Plaintiffs may file and serve an amended complaint within 10 days of notice of entry of this order. (Code of Civ. Proc. (CCP), § 472b; California Rules of Court (CRC), rule 3.1320(g).)

Meet and Confer

The meet and confer requirement has been satisfied. (Tom R. Normandin Supp. Decl., ¶¶ 1-2; CCP, § 430.41, subd. (a)(3)(B).)

Legal Standard for Demurrer

In ruling on a demurrer, a court must treat as true all properly pleaded material facts contained in the complaint, but not contentions, deductions or conclusions of fact or law. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) "We also accept as true facts which may be inferred from those expressly alleged." (*Cundiff v. GTE Cal., Inc.* (2002) 101 Cal.App.4th 1395, 1405.) A demurrer challenges "the sufficiency of the allegations in a complaint as a matter of law," not the truth of the factual allegations in the pleading or the pleader's ability to prove those allegations. (*Id.* at pp. 1404-1405.)

Questions of fact cannot be decided on demurrer. (*Berryman v. Merit Prop. Mgmt., Inc.* (2007) 152 Cal.App.4th 1544, 1556.) Because a demurrer tests only the sufficiency of the complaint, a "court will not consider facts which have not been alleged in the complaint unless they may be reasonably inferred from the matters which have been pled or are proper subjects of judicial notice." (*Hall v.*